



CHAPTER xxx.

An Act to confirm a Provisional Order under the Land Drainage Act 1861 in the matter of a proposed Drainage District in the parishes of Wistow Cawood and Selby in the West Riding of the County of York.

A.D. 1917.

[2nd August 1917.]

WHEREAS the Board of Agriculture and Fisheries have made the Provisional Order set forth in the schedule hereto under the provisions of the Land Drainage Act 1861 :

24 & 25 Vict.
c. 133.

And whereas it is requisite that the said Order should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order as amended and set out in the schedule hereto shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force.

Order in
schedule
confirmed.

2. This Act may be cited as the Land Drainage (Wistow) Provisional Order Confirmation Act 1917.

Short title.

A.D. 1917.

SCHEDULE.

LAND DRAINAGE ACT 1861.

PROVISIONAL ORDER.

In the matter of a proposed Drainage District in the parishes of Wistow Cawood and Selby in the West Riding of the County of York.

1. The Board of Agriculture and Fisheries in pursuance of the powers vested in them by the Land Drainage Act 1861 and the Board of Agriculture and Fisheries Acts 1889 to 1909 do by this Provisional Order constitute the lands shown on a plan sealed by the Board and therein coloured pink and green a separate drainage district under the Land Drainage Act 1861.

2. And they do further by this their Provisional Order make the following regulations with respect to the Drainage Board (that is to say):—

(a) The Drainage Board for the said district shall consist of fourteen members:

(b) The following persons shall be members of the first Drainage Board:—

Two members appointed by the council of the administrative county of the West Riding of the county of York;

William Clough junior Flaxley Lodge Selby;

James Pocklington Elm Tree Farm Wistow Selby;

Joseph Tate Barton Grange Selby;

James Jinks Weston Lodge Selby;

Robert Warrington Goole Bank Cawood Selby;

Walter Faulkingham Laburnum Farm Wistow Selby;

Edward Hasley Mulberry House Farm Wistow Selby;

William Jackson Croft House Farm Wistow Selby;

R. J. Pocklington Wistow Selby;

C. M. Wormald Cawood Castle Selby;

James Bradley Millgate Selby;

Dr. G. D. Todd Park Street Selby:

(c) The first meeting of the Drainage Board shall be summoned by a notice under the hands of any two or more members of the Drainage Board which shall be published in some

newspaper circulating in the said district and shall be posted at the principal entrance doors of the places of public worship in the said parishes of Wistow Cawood and Selby at least fourteen days before the day of meeting: A.D. 1917.

(d) The qualification of any subsequent member of the Drainage Board shall be that he shall be—

(1) the proprietor of not less than fifty acres of land within the said district; or

(2) the heir apparent of a proprietor (such proprietor not being himself a member of the Board) of not less than fifty acres of land within the said district; or

(3) the occupying tenant yearly or otherwise of not less than one hundred acres of land within the said district; or

(4) the agent of a proprietor of not less than fifty acres of land within the said district such agent acting under a written appointment and his principal not being a member of the Board:

(e) The members of the first Drainage Board shall vacate their offices on the first Thursday in September in the year following that in which this Provisional Order shall have been confirmed by Parliament:

(f) The electors for members of the Drainage Board shall be the persons who were during the year immediately preceding such election liable to be rated to any drainage rate of the said district leviable by the Drainage Board and have paid all such rates (if any) levied and due from them at the time of such election.

3. The lands coloured green on the said sealed plan shall not be liable to be rated by the Drainage Board in respect of any works executed by the Board for the exclusive benefit of the lands coloured pink on the said plan and the said lands coloured pink shall not be liable to be rated in respect of any works executed by the Board for the exclusive benefit of the said lands coloured green.

4. For the purpose of any rate to be levied by the Drainage Board the land within the said district belonging to the North Eastern Railway Company and lying within the fences inclosing the railway track shall not be assessed on the basis of a higher value than that of the lands immediately adjacent thereto.

5.—(1) The Drainage Board shall within six months after the confirmation of this Provisional Order repay to the owner or occupier of any lands within the Drainage District constituted by this Provisional

[Ch. xxx.] *Land Drainage (Wistow)* [7 & 8 Geo. 5.]
Provisional Order Confirmation Act, 1917.

A.D. 1917. Order the amount of any expenditure incurred by him in respect of the execution since the 1st day of March 1917 of any drainage works (being in all cases such works as the Drainage Board could themselves have executed if this Provisional Order had been confirmed on or before the said date) to the extent to which the Drainage Board shall consider the execution of such works to have been necessary and proper or so much of such expenditure as the Drainage Board shall consider to have been reasonably incurred.

(2) Any sums repaid by the Drainage Board pursuant to this section in respect of any works shall in all respects and for all purposes be deemed to be expenses incurred by the Drainage Board in the execution of such works under the powers vested in them by virtue of this Provisional Order.

In witness whereof the Board of Agriculture and Fisheries have hereunto set their official seal this thirteenth day of April nineteen hundred and seventeen.

(L.S.)

(Signed)

SYDNEY OLIVIER

Secretary.

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